
SPEAK FOR THE TREES: THE LAW AS VOICE FOR DEFENDING MANGROVE FOREST DEPLETION

MARY GEMZEL M. ALCAZAR
College of Law, West Visayas State University

Introduction

The Philippines is a nation endowed not only with abundant natural resources but also with laws governing a wide range of issues of the country. Our environment is protected by a number of laws, including one that incorporates the right to a healthy and balanced ecology into the 1987 Constitution.

Laws are important for without it, everything will be in chaos. This is also true for our environment; how would we be able to protect it in the absence of laws? How will we be able to fight against the harm that humans are causing to our environment?

One of the most pressing challenges in our country now is the preservation of our mangrove regions. These mangrove areas must be safeguarded and preserved since they are home to one of our primary food sources, fish and other animals that flourish in these environments. As a result, laws were enacted to assure the conservation of the aforementioned mangrove areas throughout the country.

Thus, in this way, the laws speak for us and our environment.

Mangroves in Panay Island

With a total land area of over 1,239,400 hectares, Panay is the sixth largest of the more than 7,000 islands in the Philippines. Iloilo Province, which makes up 42% of the island, is a plain with vast estuaries where its rivers flow into the straits of Iloilo and Guimaras. Its tallest mountains divide it from the provinces of Antique and Capiz. Many offshore islands shield the erratic Iloilo coastline from the intense *habagat* (southeast monsoon) winds; the largest being the island-province of Guimaras. In 1951, the 12,400 acres of this broad, protected lowland area with winding tidal inlets was home to rich mangrove swamps. Now, endless box-like fishponds cover the landscape and only a few scattered mangrove trees can be seen along the creeks and riverbanks (300 hectares remaining in 1988).¹

Steep mountain ranges that nearly reach the coast, separating the province of Antique from the rest of the island, provide a rocky shoreline with minimal coastal

¹ Primavera, J.H., et. al., *Handbook of Mangroves in the Philippines – Panay*, (2004), <https://repository.seafdec.org.ph/handle/10862/3053>

plain. There is a restricted distribution of mangroves in Western Panay due to its narrow plain and extended dry season. Capiz is located on the northeastern side. Its huge valley basin, created by four major interconnected rivers, and wide protected plains make it an ideal place for mangrove habitation. One of these rivers is known by its native Sulod-Bukidnon name, Mapanhay, which means tranquil. After the first Spanish town was constructed near the river's mouth in Banica, Capiz, the entire island came to be known by this name, which is today abbreviated to Panay.²

There are five main rivers in the rugged, mountainous province of Aklan to the northwest. One of the largest is the Aklan River, which drains into a delta and is site to the successful mangrove reforestation project at Buswang, Kalibo. The 72 hectares Bugtong Bato-Naisud primary patch mangroves in Ibajay, which span the Naisud River, served as our primary collecting site. The comparatively long age of Panay and its previous mainland ties to Luzon and the rest of the archipelago can be attributed to the large diversity of mangroves (33 species) on the island. Some forests, notably mangroves, have remained undeveloped in Aklan due to the slow rate of "development," and they must be protected from being converted to ponds used for aquaculture and other illegal cutting.³

Importance of Mangrove Forests

The Philippines has about 7,100 islands surrounding the mainland of Luzon in the north, Visayas in the middle and Mindanao in the south. The country has about 18,000 kilometers (km) of shorelines and vast areas of mangroves totaling 500,000 hectares.⁴

Mangrove habitats are critical to many coastal populations because they provide livelihood opportunities, food sources, and protection from coastal hazards. Given the country's longest coastlines, which act as pathways for tropical cyclones from the Pacific Ocean, mangroves and beach forests provide fishers and rural communities with sustainable and cost-effective ways to protect themselves, their properties, and communities from the devastating effects of natural disasters. Mangroves also play an important role in climate stabilization on a global scale

² Primavera, J.H., et. al., *Handbook of Mangroves in the Philippines – Panay*, (2004), <https://repository.seafdec.org.ph/handle/10862/3053>

³ *Id.*

⁴ Brown, W.H. & A.F. Fisher, *Philippine Mangrove Swamps. Minor Products of Philippine Forests Vol. I*, 22, DENR, Bureau, (1920), Cited in: Mangroves Management and Development, https://repository.seafdec.org.ph/bitstream/handle/10862/712/RTCCode_p39-47.pdf

because they have high carbon storage and sequestration capability, which is thought to be greater than that of tropical forests.⁵

Mangroves are often misunderstood and undervalued ecosystems. These coastal forests are sometimes perceived as “dirty” or “dead areas”, a wasteland that could be cleared in favor of sandy beaches, swanky resorts or other developments.⁶

More than 1,500 plant and animal species rely on mangroves. This includes fish and birds that use the shallow waters beneath mangrove plants as nursery. According to recent research, mangroves are also important for larger mammals such as monkeys, sloths, tigers, hyenas, and wild dogs.⁷ Fifteen percent of the more than 1,500 species that rely on mangroves for their survival are in danger of going extinct. When it comes to mammals, this number is rising. In the next few years, almost half of the species that live in or feed on mangrove forests may become extinct, and the situation is expected to get worse for the majority of them. Extreme weather events like storms and flood surges are growing more common and intense as global temperatures rise. Mangroves serve as an excellent first line of defense that serves to protect higher ground because their trunks absorb the impact of waves. The resilience of coastal communities and national economies is increased by valuing, restoring, and safeguarding mangroves as a natural solution.⁸

Protecting and restoring mangroves also aids in climate change mitigation through carbon sequestration, as they are among the most carbon-rich ecosystems on the globe, storing an average of 1,000 tons of carbon per hectare in biomass and underlying soils. However, mangroves are threatened. A fifth of them have already disappeared globally. Coastal development, when mangrove forests are cleared to make way for buildings and fish or shrimp farms, is the main driver of mangrove loss.⁹

For fish and shellfish, the mangrove root systems below the water provide safe nesting and breeding habitats. Fish species that flourish in mangrove forests can support local communities' diets with protein and provide jobs for fishermen in the area. In fact, it has been estimated that 80% of the global fish catch relies directly or indirectly on mangrove forests.¹⁰

⁵ Oceana Campaign Overview, <https://ph.oceana.org/our-campaigns/restore-mangrove-forests/#news-and-reports>

⁶ UN Environment Programme, *An Inside Look at the Beauty and Benefits of Mangroves*, (July 25, 2023), <https://www.unep.org/news-and-stories/story/inside-look-beauty-and-benefits-mangroves>

⁷ *Id.*

⁸ *Id.*

⁹ *Id.*

¹⁰ Goodman, Ella. *Benefits of Mangroves—Socio-economic*, (December 12, 2021), <https://www.theleafcharity.com/blog/benefits-of-mangroves-socio-economic>

Philippine Laws and Jurisprudence on Mangrove Forests

In the Philippines, we have several laws that protect our very own Mangrove Forests, among them are: Expanded National Integrated Protected Areas System (eNIPAS) Act of 2018 (R.A. No. 11038), National Integrated Protected Area System Act of 1992 (R.A. No. 7586), Strategic Environmental Plan (SEP) for Palawan Act (R.A. No. 7611), An Act Incorporating Certain Sections of the National Internal Revenue Code Of 1977, as amended, to Presidential Decree No. 705, as amended (R.A. No. 7161), The Revised Forestry Code of the Philippines (P.D. No. 705), Requiring the Planting of Trees in Certain Places and Penalizing Unauthorized Cutting, Destruction, Damaging and injuring of Certain Trees, Plants and Vegetation (P.D. No. 953).

Republic Act No. 11038: Expanded National Integrated Protected Areas System (eNIPAS) Act of 2018

The National Integrated Protected Areas System (NIPAS)¹¹ encompass ecologically rich and unique areas and biologically important public lands that are habitats of rare and threatened species of plants and animals, biogeographic zones and related ecosystems, whether terrestrial, wetland or marine, all of which shall be designated as 'protected areas'. The Law provides for the environmental and natural resources offices and protected area management offices where protected areas are located. The Environmental Management Bureau shall consider the environmental impact assessment. The Act further provides for heritage preservation, development, protection and conservation of biologically significant areas with their indigenous knowledge systems and practices. Violation of laws, rules and regulations in the protected areas are investigated by the Department of Justice. In Section 20, the prohibited acts are nominated such as killing, destroying and disturbing any wildlife, hunting, defacing boundaries, damaging roads and trails, using blasting caps and occupying any public land. All property and private rights within the protected area and its buffer zones already existing and/or vested upon the effectivity of this Act shall be protected and respected.¹² This act protects mangrove forests that are classified as protected areas.

Republic Act No. 7611: Strategic Environmental Plan (SEP) for Palawan Act

An Act adopting the strategic environmental plan for Palawan, creating the administrative machinery for its implementation, converting the palawan integrated area development project office to its support staff, providing funds therefor, and for other purposes.

¹¹ National Integrated Protected Areas System (NIPAS) Act of 1992, Rep. Act No. 7586, (June 1, 1992) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/3508>

¹² eNIPAS Act Summary, <https://www.informea.org/en/content/legislation/republic-act-11038-expanded-national-integrated-protected-areas-system-act-2018>

A comprehensive plan for the Palawan province is adopted based on a philosophy of sustainable development for Palawan and the conservation of life supporting ecosystems. An integrated approach to problems and issues shall be adopted. The Plan shall serve as a framework for government agencies concerned with the formulation and implementation of plans. The Plan shall establish a "graded system of protection and development control over Palawan including tribal lands, mangroves, seabed, etc. This system shall be known as the Environmentally Critical Areas Network (ECAN).¹³ Areas covered by ECAN shall be classified into 3 components: terrestrial, Coastal /marine areas, and tribal ancestral lands (sect. 8). The second part of the Act concerns management of resources outside of ecologically critical areas. Other provisions deal with the Palawan Council for Sustainable Development created under section 16 and conversion of an existing office to the Council.¹⁴

Republic Act No. 7161 Sec. 4: An Act Incorporating Certain Sections of the National Internal Revenue Code Of 1977, as amended, to Presidential Decree No. 705, as amended, otherwise known as "The Revised Forestry Code of the Philippines," And Providing Amendments Thereto By Increasing the Forest Charges on Timber and Other Forest Products

SEC. 4. Section 71 of Presidential Decree No. 705, as amended, (formerly Section 233 of the National Internal Revenue Code) is hereby amended to read as follows:

"SEC. 71. Charges on Firewood, Branches and Other Recoverable Wood Wastes of Timber. - Except for all mangrove species whose cutting shall be banned, there shall be collected forest charges on each cubic meter of firewood cut in forestland, branches and other recoverable wood wastes of timber, such as timber ends, tops and stumps, when used as raw materials for the manufacture of finished products, Ten pesos (P10.00).

"Only third or fourth group wood can be taken for firewood. However, if jointly authorized by the Secretaries of both the Departments of Environment and Natural Resources, and Agriculture, first and second group woods may be removed for firewood purposes from land which is more valuable for agriculture than for forest purposes."¹⁵

¹³ PCSDS. 2006. ECAN Zones Management Plan for El Nido Municipality Palawan Council for Sustainable Development, Puerto Princesa City, Philippines, <https://pkp-new.pcsd.gov.ph/environmentally-critical-areas-network-ecan-zones-management-plan-for-el-nido-municipality-2006/>

¹⁴ Republic Act No. 7611: Strategic Environmental Plan (SEP) for Palawan Act Summary, <https://www.fao.org/faolex/results/details/en/c/LEX-FAOC019797/>

¹⁵ Revised Forestry Code of the Philippines, Rep. Act No. 7161 §4, (October 10, 1991) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/2885>

Presidential Decree No. 705, s. 1975: Revised Forestry Code of the Philippines

The Revised Forestry Code of the Philippines, also known as Presidential Decree No. 705, was strengthened by Republic Act 7161, which made cutting down mangroves illegal. In 1998, the Philippine Fisheries Code¹⁶ was introduced, specifying in Sections 46 and 49 that all abandoned fishponds must be reverted to their original mangrove state.

It must also be noted that in the case of *Director of Forestry v. Villareal*, the Supreme Court ruled that conformably to the legislative definition embodied in Section 1820 of the Revised Administrative Code of 1917, which remains unamended up to now, mangrove swamps or manglares form part of the public forests of the Philippines. As such, they are not alienable under the Constitution and may not be the subject of private ownership until and unless they are first released as forest land and classified as alienable agricultural land.¹⁷

Presidential Decree No. 953, s. 1976: Requiring the Planting of Trees in Certain Places and Penalizing Unauthorized Cutting, Destruction, Damaging and injuring of Certain Trees, Plants and Vegetation

Section 3 states that “any person who cuts, destroys, damages or injures, naturally growing or planted trees of any kind, flowering or ornamental plants and shrubs, or plants of scenic, aesthetic and ecological values, along public roads, in plazas, parks other than national parks, school premises or in any other public ground or place, or on banks of rivers or creeks, or along roads in land subdivisions or areas therein for the common use of the owners of lots therein, or any species of vegetation or forest cover found therein shall, be punished with imprisonment for not less than six months and not more than two years, or a fine of not less than five hundred pesos and not more than five thousand pesos, or with both such imprisonment and fine at the discretion of the court, except when the cutting, destroying, damaging or injuring is necessary for public safety or the pruning thereof is necessary to enhance beauty, and only upon the approval of the duly authorized representative of the head of agency or political subdivision having jurisdiction therein, or of the Director of Forest Development in the case of trees on banks of rivers and creeks, or of the owner of the land subdivision in the case of trees along roads and in other areas therein for the common use of owners of lots therein. If the offender is a corporation, partnership or association, the penalty shall be imposed upon the officer or officers thereof

¹⁶ Philippine Fisheries Code of 1998, Rep. Act No. 8550, (February 25, 1998) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/4002>

¹⁷ *Director of Forestry v. Villareal*, G.R. No. L-32266, (February 27, 1989) (Phil.), https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId.=37189&Index=%2a4aeb4dbdcceeda9b59b85ae3fb22cec0&HitCount=4&hits=4+5+11+12+&SearchForm=C%3a%5celibrev2%5csearch%5csearch%5fform

responsible for the offense, and if such officer or officers are aliens, in addition to the penalty herein prescribed, he or they shall be deported without further proceedings before the Commission on Immigration and Deportation. Nothing in this Decree shall prevent the cancellation of a license agreement, lease, license or permit from the Government, if such cancellation is prescribed therein or in Government regulations for such offense.”¹⁸

Related Cases

The Court of Appeals (CA) upheld a lower court's ruling in favor of the issuance of a permanent protection order (PPO) against the illegal occupation and destruction of five hectares of protected land within a mangrove reserve in Puerto Princesa City, Palawan.¹⁹

In a decision dated February 21, the appellate court's Special Seventh Division dismissed the appeal filed by businessman Rafael Cervantes and affirmed the Puerto Princesa Regional Trial Court's (RTC) decision which required him to post a Php 10 million initial trust fund for the rehabilitation and restoration of the damaged areas at the Mangrove Swamp Forest Reserve, in Sitio Barimbing in Barangay San Manuel.²⁰

Under a number of laws including Presidential Proclamation 2152²¹ signed in 1981, the entire province of Palawan is a mangrove swamp forest reserve and cutting of mangroves is prohibited.

In *Leynes v. People*, Petitioner Efren R. Reyes was convicted for the offense of conversion of mangroves as punishable under Section 94 of Republic Act No. 8550, otherwise known as the “Philippine Fisheries Code of 1998.” The Supreme Court said that “it is high time and therefore, to avoid confusion, that mangrove forests do not consist of the typical mangrove trees only. As defined, mangroves are “a community of intertidal plants including all species of trees, shrubs, vines and herbs found on coasts, swamps, or borders of swamps.” Contrary to Efren's belief, “the word ‘mangroves’ refers to a group of plants which may actually belong to several families (species that distinctly belong to their own

¹⁸ Requiring the Planting of Trees in Certain Places and Penalizing Unauthorized Cutting, Destruction, Damaging and Injuring of Certain Trees, Plants and Vegetation, P.D. No. 953, §3, (July, 6, 1976) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/26/18327>

¹⁹ Benjamin Pulta, *Palawan Court's Protection Order on Mangrove Reserve Affirmed*, (Feb. 25, 2020), <https://www.pna.gov.ph/articles/1094701>

²⁰ *Id.*

²¹ Presidential Proclamation 2152, s. 1981, <https://www.officialgazette.gov.ph/1981/12/29/proclamation-no-2152-s-1981/>

evolutionary group)." By cutting a tree in the mangrove forest, regardless of its species, Efren caused conversion of the same.²²

House Bill No. 2275 also known as the “Mangrove Forest Protection and Reservation Act”

On July 22, 2022, House Bill No. 2275 was introduced in the 19th Congress of the Philippines, wherein it proposes the establishment of Mangrove Reservation Areas in all local government units with coastal areas within the Philippines portions of land solely for the preservation, protection, reforestation, and sustainable management of mangrove forests; establishment and composition of the National Council for the Preservation of Mangrove Forests which shall be attached agency of the Department of Environment and Natural Resources (DENR); and establishment of Local Councils for the Preservation of Mangrove Forests in each of the local government units where a mangrove reservation area has been identified. It also discusses the powers and functions of the National and Local Council.²³

The bill also requires mandatory prior consultations which states that no project of program that may cause pollution, deduction or loss of mangrove forests or extinction of marine and estuarine plant and animal species shall be implemented by the National or Local Council without prior consultations with the local government unit concerned, non-governmental or people’s organizations, and other sectors concerned.²⁴ House Bill No. 2275 is geared towards utilizing Local Government Units to implement further protection and preservation of Mangrove Forests in the Philippines, thus the passage of this bill into law would be a great step to a more effective instrument in safeguarding Mangrove Forests, as it is a specific law that goes deeper into the local level.

Conclusion

Our country is indeed a nation that has numerous laws on environmental protection, however, there is still a need to make the public aware of the value of mangrove areas and the laws protecting them. Thus, to protect and preserve the mangrove forests, local government units should take the lead in encouraging their constituents to plant more mangrove trees. They should also make sure that the laws, rules, and regulations pertaining to these forests are strictly followed and that they are implemented appropriately, not only to protect our environment but also to support the livelihood of fishermen who depend entirely on the mangroves for a plentiful harvest of seafood.

²² Leynes v. People, G.R. No. 224804, (September 21, 2016) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/62395>

²³ House Bill No. 2275 - An Act Establishing the National Council for the Preservation of Mangrove Forests, https://docs.congress.hrep.online/legisdocs/basic_19/HB02275.pdf

²⁴ *Id.*

Bibliography

Statutes

eNIPAS Act Summary,

<https://www.informea.org/en/content/legislation/republic-act-11038-expanded-national-integrated-protected-areas-system-act-2018>

Philippine Fisheries Code of 1998, Rep. Act No. 8550, (February 25, 1998) (Phil.),
<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/4002>

Presidential Proclamation 2152, s. 1981,
<https://www.officialgazette.gov.ph/1981/12/29/proclamation-no-2152-s-1981/>

National Integrated Protected Areas System (NIPAS) Act of 1992, Rep. Act No. 7586, (June 1, 1992) (Phil.),
<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/3508>

Republic Act No. 7611: Strategic Environmental Plan (SEP) for Palawan Act Summary,
<https://www.fao.org/faolex/results/details/en/c/LEX-FAOC019797/>

Revised Forestry Code of the Philippines, Rep. Act No. 7161 §4, (October 10, 1991) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/2885>

Requiring the Planting of Trees in Certain Places and Penalizing Unauthorized Cutting, Destruction, Damaging and Injuring of Certain Trees, Plants and Vegetation, P.D. No. 953, §3, (July, 6, 1976) (Phil.),
<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/26/18327>

House Bill

House Bill No. 2275 - An Act Establishing the National Council for the Preservation of Mangrove Forests,
https://docs.congress.hrep.online/legisdocs/basic_19/HB02275.pdf

Jurisprudence

Director of Forestry v. Villareal, G.R. No. L-32266, (February 27, 1989) (Phil.),
https://elibrary.judiciary.gov.ph/assets/dtSearch/dtSearch_system_files/dtisapi6.dll?cmd=getdoc&DocId=37189&Index=%2a4aeb4dbdceeda9b59b85ae3fb22cec0&HitCount=4&hits=4+5+11+12+&SearchForm=C%3a%5ce librev2%5csearch%5csearch%5fform

Leynes v. People, G.R. No. 224804, (September 21, 2016) (Phil.),
<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/62395>

Online Sources

Benjamin Pulta, Palawan Court's Protection Order on Mangrove Reserve Affirmed, (February 25, 2020),
<https://www.pna.gov.ph/articles/1094701>

Brown, W.H. & A.F. Fisher, Philippine Mangrove Swamps. Minor Products of Philippine Forests Vol. I, 22, DENR, Bureau, (1920), Cited in: Mangroves Management and Development,
https://repository.seafdec.org.ph/bitstream/handle/10862/712/RTCCode_p_39-47.pdf

Goodman, Ella. Benefits of Mangroves—Socio-economic, (December 12, 2021),
<https://www.theleafcharity.com/blog/benefits-of-mangroves-socio-economic>

Oceana Campaign Overview,
<https://ph.oceana.org/our-campaigns/restore-mangrove-forests/#news-and-reports>

PCSDS. 2006. ECAN Zones Management Plan for El Nido Municipality Palawan Council for Sustainable Development, Puerto Princesa City, Philippines,
<https://pkp-new.pcsd.gov.ph/environmentally-critical-areas-network-ecan-zones-management-plan-for-el-nido-municipality-2006/>

Primavera, J.H., et. al., Handbook of Mangroves in the Philippines – Panay, (2004).,
<https://repository.seafdec.org.ph/handle/10862/3053>

UN Environment Programme, An Inside Look at the Beauty and Benefits of Mangroves, (July 25, 2023),
<https://www.unep.org/news-and-stories/story/inside-look-beauty-and-benefits-mangroves>